

22SMCV02196 22SMCV02196

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-06-24

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Case Number: 22SMCV02196 Hearing Date: June 24, 2026 Dept: M

The Court has reviewed Plaintiff's default judgment.

As an initial matter, the complaint does not establish any

breach of contract damages. Plaintiff will be limited to the statement of

damages on her tort claim for breach of confidentiality. (See Electronic

Funds Solutions, LLC v. Murphy (2005) 134 Cal.App.4th 1161, 1176 [Statement

of Damages Cannot Substitute for an Amended Complaint]; Energy Co. v. Hodges

(2005) 128 Cal.App.4th 199 ["Statements of damages are used only in personal

injury and wrongful death cases, in which the plaintiff may not state the

damages sought in the complaint. [Citation.] In all other cases, when

recovering damages in a default judgment, the plaintiff is limited to the

damages specified in the complaint.".) Since there are no valid breach of

contract damages, Plaintiff will also not be able to collect prejudgment

interest on the tort claim.

Plaintiff has presented evidence concerning her general

damages. Plaintiff testifies as to some emotional trauma regarding the breach of confidentiality, noting her “panic” and “stress” upon learning of the disclosures. (Decl., paras. 41, 46, 53.) While additional evidence of more substantial and enduring emotional distress would be helpful (evidence re: her alleged anxiety, medical intervention, reputational damage, etc.), the Court believes Plaintiff has justified a \$250,000.00 award.

Plaintiff does not show any relocation costs as compensatory damages. (Civ. Code §§ 3281-3282.) Her declaration just states she was “forced to pay for relocation costs” without ever giving the relocation costs. (MB Decl., ¶ 43. Plaintiff shows “expenses as a result of Defendant’s breach of his confidentiality obligation” as exhibit E, but these are just litigation costs.

Thus, the court has jurisdiction to enter judgment with \$250,000.00 of general damages plus costs of \$8,362.44, with no prejudgment interest.